LOVING ET UX. *v.* VIRGINIA.

APPEAL FROM THE SUPREME COURT OF APPEALS OF VIRGINIA.

No. 395. Argued April 10, 1967.—Decided June 12, 1967.

Virginia's statutory scheme to prevent marriages between persons solely on the basis of racial classifications *held* to violate the Equal Protection and Due Process Clauses of the Fourteenth Amendment. Pp. 4–12.

206 Va. 924, 147 S. E. 2d 78, reversed.

REED *v.* REED, ADMINISTRATOR

APPEAL FROM THE SUPREME COURT OF IDAHO

No. 70–4. Argued October 19, 1971—Decided November 22, 1971

A mandatory provision of the Idaho probate code that gives preference to men over women when persons of the same entitlement class apply for appointment as administrator of a decedent's estate is based solely on a discrimination prohibited by and therefore violative of the Equal Protection Clause of the Fourteenth Amendment.

93 Idaho 511, 465 P. 2d 635, reversed and remanded.

BURGER, C. J., delivered the opinion for a unanimous Court.

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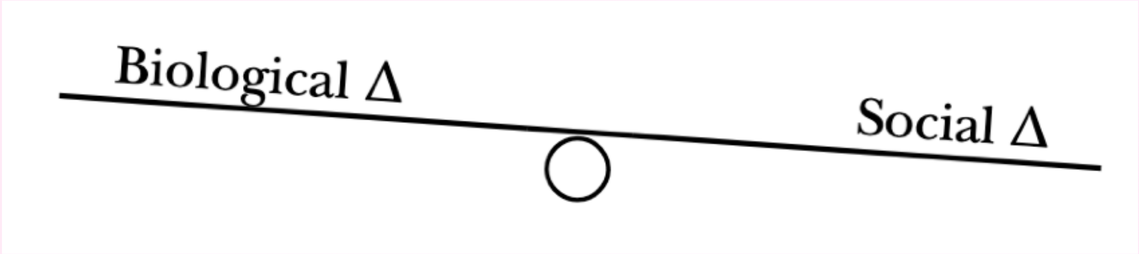

Sameness-difference conception